

STAFF TIME SCHEDULES

Time schedules of Loudoun County Public School (LCPS) employees are established in accordance with the Fair Labor Standards Act (FLSA) and the provisions of this policy. This policy includes time schedules by salary scale, overtime procedures, remote work requirements, and recordkeeping requirements.

A. Time Schedules.

1. The required workdays for employees shall be outlined in their respective staff calendars. The schedule of work hours for employees will be determined by the department or school to which the employee is assigned. Employees will be informed of their daily schedule of hours of work, including meal periods, and of any changes deemed necessary by the school division, provided changes are not in conflict with the employees' contract.

2. Established guidelines for staff time schedules regarding on-call duties, remote work during normal operations, inclement weather, pandemic, and other unexpected closures for non-essential and essential positions are outlined in Regulation 7030.

3. Salary Scale A.

- a. Employees paid on Salary Scale A are generally expected to be on site for the entire student school day, from prior to student arrival until after student dismissal. Teachers are expected to spend additional time outside of the student school day but are not required to perform all duties on site. Exact arrival and departure times, as well as whether a particular duty must be performed on site or can be completed remotely, shall be established by the supervisor.
- b. Positions on Salary Scale A are exempt from the minimum wage and maximum hours requirements set out in the FLSA. Typically, the defined workday for teachers shall be 7 ½ hours per day, inclusive of a 30-minute duty free lunch except on days when emergencies occur or special events are scheduled. Typically, the defined workday for school counselors shall be 8 hours per day, inclusive of a 30-minute duty-free lunch except on days when emergencies occur or special events are scheduled. Other employees in this category may be assigned different work hours as established by their supervisors as specified by contract or as established in applicable policies.

STAFF TIME SCHEDULES

- c. Occasionally, supervisors may assign duties or schedule meetings that require employees who are paid on Salary Scale A to remain at work on a particular day in excess of 7 ½ or 8 hours in order to ensure the proper functioning of the schools, including, but not limited to, team planning and staff development.
 - d. For the purpose of this Policy, occasionally means infrequent, not routinely scheduled. Supervisors [principals] may have teachers/school based staff arrive before students or remain after dismissal “occasionally” for activities such as, but not limited to participating in back to school nights, professional development which supports the employee in their learning and specific role to their job, meet with parents (usually done once in the first quarter at the elementary level and mostly during a teacher workday), and/or for a whole school staff meeting to receive information relative to the worksite.
 - e. Such meetings/opportunities are usually not more than once per month and not every month with the exception of a staff meeting.
4. Salary Scale C.
- a. Employees paid on Salary Scale C are generally expected to work pursuant to the established work hours for the position. Exact arrival and departure times shall be established by the supervisor.
 - b. Positions on Salary Scale C are exempt from the minimum wage and maximum hours requirements set out in the FLSA. Typically, the defined workday shall be 8 hours per day, unless otherwise specified by contract or assignment.
 - c. Occasionally, Supervisors may assign duties or schedule meetings involving time in excess of 8 hours per day as needed to ensure the proper functioning of the schools, including, but not limited to, team planning and staff development.
5. Salary Scale B.
- a. Employees paid on Salary Scale B are expected to work pursuant to the established work hours for the position. Exact arrival and departure times shall be established by the supervisor.

STAFF TIME SCHEDULES

- b. Certain positions on Salary Scale B are exempt from the minimum wage and maximum hours requirements set out in the FLSA. The defined workday for exempt positions shall be 8 hours per day, unless otherwise specified by contract or assignment. Occasionally, Supervisors may assign responsibilities or schedule meetings involving time in excess of 8 hours per day.
- c. Certain positions on Salary Scale B are non-exempt and subject to the minimum wage and maximum hours requirements set out in the FLSA. The defined workday for non-exempt positions varies and is based on the employee's position. The supervisor shall establish lunch and break times in accordance with state and federal laws or other applicable policies, regulations or procedures. In addition, the supervisor may schedule duties or meetings involving time in excess of an employee's defined work hours, but the employee must be compensated for all time worked. Non-exempt employees who work greater than forty (40) hours in the defined work week shall be compensated in accordance with the FLSA.

B. Overtime Procedures.

1. Non-exempt employees are eligible for overtime. Supervisors may schedule overtime when it is deemed necessary if they have received approval from the appropriate member of Senior Staff to verify the funding source before scheduling, permitting or asking a non-exempt employee to work on an overtime basis. FLSA non-exempt employees are not permitted to work overtime without the prior approval of their supervisors.

2. For the purposes of overtime compensation, only hours worked in excess of forty (40) hours during the defined work week will be counted.

- a. For hours of work performed in excess of forty (40) hours in the defined work week, non-exempt employees will be compensated at a rate equal to one- and one-half times their regular rate of pay.
- b. For hours of work performed in excess of the defined work schedule up to forty (40) hours for the work week, employees will be compensated at their regular hourly rate for the additional time.

3. LCPS retains the option of granting compensatory time in lieu of overtime payments for non-exempt employees. Employees are permitted to take compensatory time after making a request to their supervisor.

STAFF TIME SCHEDULES

- a. A maximum of forty (40) hours of compensatory time can be accumulated between July 1, and June 30, annually. No compensatory time will be carried forward to the next fiscal year. It will be paid at the appropriate rate after June 30, or upon separation.
- b. Non-exempt employees who are approved for compensatory work or leave must enter all corresponding time on the individual time record.

C. Record Keeping Requirements.

1. All non-exempt employees are required to complete an individual time record showing all daily hours worked. Time records cover one pay period and are to be completed by the close of the pay period.

- a. Employees are to record their starting time and ending time for each workday.
- b. Employees are not permitted to sign in or commence work before their normal starting time or to sign out or continue working after their normal ending time without the prior approval of their supervisor.
- c. Employee time records are to be reviewed and approved by the supervisor. Authorized overtime also must be approved by the supervisor. Employees must enter all leave and hours worked in the time recording system.

2. All exempt employees are required to complete an individual time record when leave is taken. Exempt employees are not required to enter individual daily hours worked. Employee time records are to be checked and approved by the supervisor.

3. The filling out of another employee's time record or the falsifying of any time record is prohibited and may be grounds for disciplinary action, including termination.

4. Supervisors are responsible for ensuring that time and leave are correctly reported, and are approved for their employees.

Former Policy 7-5 Adopted: 6/13/72

Revised: 6/3/86, 6/22/93, 10/27/09, 3/29/16, 3/12/19, 11/28/23

Current Revision: 4/10/25

STAFF TIME SCHEDULES

Legal Refs: [Fair Labor Standards Act](#) (FLSA)

Cross Ref: Regulation [7030](#), Staff Time Schedules; Policy [7022](#), Employee
Classification; Regulation [3120](#), Powers and Duties